



CHAPTER cliii.

An Act to empower the mayor aldermen and burgesses of the borough of Bournemouth to construct further tramways and to acquire the undertaking of the Tuckton Bridge Company and for other purposes.

[1st August 1904.]

WHEREAS in pursuance of the Bournemouth Corporation Tramways Acts 1900 to 1903 the mayor aldermen and burgesses of the borough of Bournemouth (herein-after called "the Corporation") have constructed tramways in their borough:

And whereas by the Christchurch and Bournemouth Tramways Act 1900 (in this Act called "the Christchurch Act of 1900") the Poole and District Electric Traction Company Limited (in this Act called "the Traction Company") were empowered to construct tramways in the neighbourhood of the said borough and by reason of a subsequent alteration of the boundary of the borough part of the tramways authorised by that Act will be situate in the borough:

And whereas by the Christchurch and Bournemouth Tramways Act 1903 the periods limited for the purchase of lands for and for the construction of the works authorised by the Christchurch Act of 1900 were extended and further provision was made in regard to the undertaking authorised by that Act:

And whereas in pursuance of the Bournemouth Corporation Tramways Act 1903 (in this Act called "the Act of 1903") the Corporation are to purchase the undertaking of the Traction Company and it is by that Act provided that upon the comple-

A.D. 1904. — tion of the purchase all the rights powers authorities duties and obligations conferred or imposed upon that company by the Christchurch and Bournemouth Tramways Acts 1900 and 1903 shall be transferred to and vested in and may be exercised by and shall attach to the Corporation in like manner as if the Corporation were named in the said Acts instead of the Traction Company :

And whereas by section 7 (For protection of Christchurch Corporation) of the Act of 1903 it is (amongst other things) provided that if the Corporation should in the present Session of Parliament promote a Bill to authorise the construction maintenance and working of a line of tramways in that section referred to as "the alternative tramway" in substitution partly for and connecting the same termini as the Tramway No. 2A authorised by the Christchurch Act of 1900 the mayor aldermen and burgesses of the borough of Christchurch should consent to the introduction of such Bill and should not oppose the passing thereof save as therein mentioned :

And whereas it is expedient to empower the Corporation to construct a tramway (referred to in this Act as "Tramway No. 3") partly in substitution for Tramway No. 2A authorised by the Christchurch Act of 1900 to construct the additional tramways and tramroad described in this Act and to construct the street improvements therein described :

And whereas one of the tramways authorised by this Act is proposed to be constructed across a bridge known as the Tuckton Bridge which was constructed in pursuance of the Tuckton Bridge Act 1881 and which is situate partly in the borough of Bournemouth and partly in the borough of Christchurch :

And whereas the Tuckton Bridge Company the owners of the said bridge have agreed to sell their undertaking to the Corporation upon the terms appearing in this Act and it is expedient to empower the Corporation to acquire the said undertaking upon those terms :

And whereas it is expedient to confer additional powers upon the Corporation in regard to the erection of pavilions and other buildings in certain parks belonging to them and in regard to the sale acquisition or exchange of lands for the purpose of improving the boundaries of those parks :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the purposes herein-after mentioned and such estimates are as follows—

For the construction of the tramways authorised by this Act (including the strengthening and improvement of the Tuckton Bridge) together with all necessary posts standards brackets conductors and conveniences for the purposes of such tramways and for the purchase of rolling stock - - - - -	£ 39,000
For the purchase of land for and for the construction of the tramroad authorised by this Act including the bridge over the River Stour	12,000
For the purchase of land for and for the execution of the street improvements authorised by this Act - - - - -	10,000
For the purchase of the undertaking of the Tuckton Bridge Company and for defraying the costs and expenses incident to such purchase and to the transfer of such undertaking to the Corporation (other than the costs of this Act) and any other sum payable by the Corporation to the said company under the provisions of this Act (except sums payable for interest) - - - - -	15,500

And whereas the several works included in such estimates respectively are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas an absolute majority of the whole number of the council at a meeting held on the ninth day of November nineteen hundred and three after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the Bournemouth Visitors' Directory a local newspaper published and circulating in the borough such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to

A.D. 1904. — promoting the Bill for this Act should be charged on the borough fund and borough rate :

And whereas such resolution was published twice in the said newspaper and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the fifth day of January nineteen hundred and four being not less than fourteen days after the deposit of the Bill in Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule of the Borough Funds Act 1903 have been observed :

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Southampton and are in this Act respectively referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PRELIMINARY.

Short and
collective
titles.

1. This Act may be cited as the Bournemouth Corporation Act 1904 and the Bournemouth Corporation Tramways Acts 1900 to 1903 and the Christchurch and Bournemouth Tramways Acts 1900 and 1903 and this Act may be jointly cited as the Bournemouth Corporation Tramways Acts 1900 to 1904.

Incorpora-
tion of Acts.

2. The following Acts and parts of Acts so far as the same are applicable for the purposes of and are not inconsistent with the provisions of this Act are hereby incorporated with and form part of this Act namely :—

The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845) :

Section 19 (local authority may lease or take tolls) and A.D. 1904.
Parts II. and III. of the Tramways Act 1870 Provided —
that—

(1) The words in section 19 of that Act “but nothing
“ in this Act contained shall authorise any local autho-
“ rity to place or run carriages upon such tramway
“ and to demand and take tolls and charges in respect
“ of the use of such carriages ” shall not apply to the
Corporation ;

(2) The provisions of section 19 (except the words
herein-before mentioned) and of Part III. of the Tram-
ways Act 1870 shall so far as applicable apply to the
tramroad authorised by this Act as if it were a
tramway.

3. The several words and expressions to which by the Interpretation.
Acts wholly or partially incorporated with this Act or by the
Public Health Acts meanings are assigned shall in this Act
have the same respective meanings unless there be something in
the subject or context repugnant to or inconsistent with such
construction And in this Act unless the subject or context
otherwise requires—

“The Corporation ” means the mayor aldermen and burgesses
of the borough of Bournemouth ;

“The borough ” means the borough of Bournemouth ;

“The council ” means the council of the borough ;

“The town clerk ” “the borough fund ” “the borough rate ”
“the district fund ” and “the general district rate ”
mean respectively the town clerk the borough fund the
borough rate the district fund and the general district
rate of the borough ;

“The tribunal ” means the jury arbitrators umpire or other
authority to whom any question of disputed compensa-
tion under this Act is referred ;

“The Tuckton Bridge ” means the bridge and approaches and
the works connected therewith constructed in pursuance
of the Tuckton Bridge Act 1881 ;

“The bridge company ” means the Tuckton Bridge Com-
pany ;

“The undertaking of the bridge company ” includes all the
real and personal property assets and effects of whatever

A.D. 1904.

nature and all the rights powers and privileges vested in or belonging to or had or enjoyed by the bridge company at the date of the transfer of their undertaking to the Corporation under the provisions of this Act except any cash in their hands or at their bankers and their reserve fund and except the books and papers relating exclusively to the shareholders in and the constitution of the bridge company;

“The Act of 1881” means the Tuckton Bridge Act 1881;

“The Christchurch Act of 1900” means the Christchurch and Bournemouth Tramways Act 1900;

“The Act of 1903” means the Bournemouth Corporation Tramways Act 1903.

TRAMWAYS.

Power to
make tram-
ways and
tramroad.

4. Subject to the provisions of this Act the Corporation may make form lay down work use and maintain the tramways and tramroad herein-after described in the lines and according to the levels shown on the deposited plans and sections in all respects in accordance with those plans and sections with all proper rails plates junctions turn-tables turn-outs crossings passing-places posts poles brackets wires waiting-rooms carriage houses sheds buildings engines works and conveniences connected therewith Provided that nothing in this Act shall authorise any interference with electric lines and works of any undertakers under the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply except in accordance with and subject to the provisions of that section.

The tramways and tramroad herein-before referred to and authorised by this Act are—

Tramway No. 1 (double line 5·6 chains or thereabouts in length) to be situate in the borough commencing in the Cromwell Road by a junction with Tramway No. 4 authorised by the Christchurch Act of 1900 at the junction of Cromwell Road and Norwood Place passing along the new street authorised by this Act and terminating by a junction with the said Tramway No. 4 at a point 50 yards north-west of the junction of Livingstone Road with Seabourne Road;

Tramway No. 2 (2 furlongs and 8 chains or thereabouts in length whereof 7 chains will be double line and 2 fur-

A.D. 1904

longs 1 chain will be single line) to be situate in the borough commencing in Seabourne Road by a junction with the said Tramway No. 4 at the junction of Seabourne Road with Parkwood Road passing along Seabourne Road and Southbourne Grove and terminating by a junction with the said Tramway No. 4 at the junction of Southbourne Grove and Southbourne Road;

Tramway No. 3 (1 mile 7 furlongs and 5·5 chains or thereabouts in length whereof 1 furlong 8·5 chains will be double line and 1 mile 5 furlongs 7 chains will be single line) to be situate in the borough and in the borough of Christchurch commencing in Southbourne Road at its junction with the Avenue and at the termination of the aforesaid Tramway No. 4 passing along Southbourne Road Belle Vue Road to its southern junction with Foxholes Road Foxholes Road again along Belle Vue Road across the River Stour by Tuckton Bridge and along Stour Road and terminating by a junction with Tramway No. 2A authorised by the Christchurch Act of 1900 at the junction of Stour Road with Barrick Road;

Tramroad No. 1 (1 furlong and 3·3 chains or thereabouts in length) to be situate in the borough and in the borough of Christchurch and to include a bridge over the River Stour commencing at the junction of the Belle Vue Road and Tuckton Road by a junction with Tramway No. 3 herein-before described and terminating in Stour Road by a junction with the said Tramway No. 3 at a point 60 yards north of the toll house of Tuckton Bridge.

5. Subject to the provisions of this Act the Corporation may make and maintain in the lines and according to the levels shown on the deposited plans and sections the following street improvements new street and other works in the borough with all proper approaches embankments retaining walls works and conveniences connected therewith or incident thereto (that is to say) :—

Power to make street improvements.

A widening of Christchurch Road and Cromwell Road at the west side of the junction of the said roads commencing in Christchurch Road at a point ·6 of a chain or thereabouts west of the junction of that road with Cromwell Road and terminating in Cromwell Road ·6 of a chain or thereabouts south of the said junction;

A.D. 1904.

A new street joining Cromwell Road with Seabourne Road commencing in Cromwell Road at its junction with Norwood Place and terminating by a junction with Seabourne Road at a point 1·8 chains to the southward of the junction of Darracott Road with Seabourne Road;

A widening of Belle Vue Road and Tuckton Road at the east side of the junction of the said roads commencing in Belle Vue Road at a point 1 chain or thereabouts south of the junction of that road with Tuckton Road and terminating in Tuckton Road 1 chain or thereabouts east of the said junction.

Limits of deviation.

6. In the construction of the street improvements and tramroad authorised by this Act the Corporation may deviate from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of lateral deviation shown on those plans and from the levels thereof as shown on the deposited sections to any extent not exceeding in the case of the street improvements two feet either upwards or downwards and in the case of the tramroad (including the proposed bridge over the River Stour) not exceeding five feet either upwards or downwards Provided that no deviation either lateral or vertical below high-water mark shall be made without the consent in writing of the Board of Trade.

Lights on works during construction.

7.—(1) The Corporation shall at or near the works below high-water mark hereby authorised during the whole time of the constructing altering or extending the same exhibit and keep burning at their own expense every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Board of Trade from time to time require or approve.

(2) If the Corporation fail to comply in any respect with the provisions of this section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

Subsidiary works.

8. Subject to the provisions of this Act and within the limits of deviation shown on the deposited plans the Corporation may in connection with the works authorised by this Act and for the purposes thereof make junctions and communications with any existing streets which may be intersected or interfered with by or be contiguous to such works and may make diversions widenings or alterations of the lines or levels

of any existing streets for the purpose of connecting the same with such works or of crossing under or over the same or otherwise and may alter divert or stop up all or any part of any drain sewer channel or gas or water main or pipe wire or apparatus within the said limits the Corporation providing a proper substitute before interrupting the flow of sewage in any drain or sewer or of any gas or water in any main or pipe or of electricity in any wire or apparatus and making compensation for any damage done by them in the execution of the powers of this section :

A.D. 1904.

Provided that nothing in this section shall authorise any interference with electric lines and works of any undertakers under the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply except in accordance with and subject to the provisions of that section.

9. Where the Corporation under the powers of this Act widen or alter any street in or under which any electric line of the Bournemouth and Poole Electricity Supply Company Limited is laid under the powers of any Act or Order that company may make such alteration in the position of such line as may be reasonably necessary in consequence of the widening or alteration of such street subject to such provisions (so far as applicable) as apply in the case of altering such line under their existing powers and any costs reasonably incurred by the said company in such alteration shall be defrayed by the Corporation.

Alteration of electric lines.

10. The Corporation may during the execution and for the purposes of any work authorised by this Act from time to time stop up any street and prevent all persons other than those bonâ fide going to or returning from any house in the street from passing along and using the same for any reasonable time but convenient access to the houses in such street shall be provided by the Corporation.

Temporary stoppage of streets.

11. The tramways and tramroad authorised by this Act shall be completed within five years from the passing of this Act and on the expiration of that period the powers by this Act granted to the Corporation for executing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

Period for completion of works.

12.—(1) The following sections of the Christchurch Act of 1900 shall subject to the provisions of this Act and with any

Application of existing Acts to

A.D. 1904.
—
tramways
and tram-
road.

necessary modifications extend and apply to the tramways and the works connected therewith authorised by this Act as if those tramways and works had been authorised by the Christchurch Act of 1900 namely:—

- Section 12 (For protection of mains and pipes);
- Section 21 (As to rails of tramways);
- Section 22 (Repair of part of road where tramway is laid);
- Section 23 (Further provisions as to construction of tramways);
- Section 24 (Penalty for not maintaining rails and roads in proper order);
- Section 25 (Tramways to be kept on level of surface of roads);
- Section 26 (Application of road materials excavated in construction of works);
- Section 29 (Temporary tramways may be made when necessary); and
- Section 30 (Local authority to have access to sewers).

(2) The following sections of the Christchurch Act of 1900 shall subject to the provisions of this Act and with any necessary modifications extend and apply to the tramways and tramroad and the works connected therewith authorised by this Act as if those tramways tramroad and works had formed part of the tramways and works authorised by the Christchurch Act of 1900 namely:—

- Section 9 (Works below high-water mark not to be commenced without consent of Board of Trade);
- Section 10 (Survey of works by Board of Trade);
- Section 11 (Abatement of work abandoned or decayed);
- Section 16 (As to electrical works &c.) except subsections (2) and (3);
- Section 19 (Gauge of tramways);
- Section 20 (Inspection by Board of Trade);
- Section 38 (Provisions as to motive power);
- Section 39 (Byelaws);
- Section 40 (Recovery of penalties);
- Section 41 (Amendment of Tramways Act 1870 as to byelaws by local authority);
- Section 42 (Orders &c. of Board of Trade);

- Section 43 (For the protection of the Postmaster-General); A.D. 1904.
- Section 44 (Special provisions as to use of electrical power);
- Section 45 (Rates for passengers);
- Section 46 (Passengers' luggage);
- Section 47 (Company may carry animals goods and other things);
- Section 48 (Rates for animals goods &c.: Animals: Goods);
- Section 49 (Rates for small parcels and single articles of great weight);
- Section 50 (Regulations as to rates on tramways);
- Section 52 (Cheap fares for labouring classes);
- Section 53 (Prohibiting the raising of fares on Sundays and holidays);
- Section 54 (Periodical revision of rates and charges); and
- Section 59 (Agreements with local authorities as to supply of electric power):

Provided that nothing in this Act shall prejudice or affect the agreements dated the twenty-eighth day of September nineteen hundred and the seventeenth day of July nineteen hundred and two specified in the schedule to the agreement set out in the First Schedule to the Act of 1903 or the rights or liabilities of the Bournemouth and Poole Electricity Supply Company Limited or the Corporation thereunder.

(3) So much of the tramways and tramroad authorised by this Act as will be situate in the borough of Christchurch shall be deemed to form part of the tramway undertaking referred to in subsection (5) of section 7 (For protection of Christchurch Corporation) of the Act of 1903.

13. Section 43 (For the protection of the Postmaster-General) of the Christchurch Act of 1900 shall be and is hereby amended as follows:—

For protection of Postmaster-General.

- (1) Subsection (3) thereof shall be read as if the words within brackets "or the laying of lines crossing the
" line of the Postmaster-General at right angles at
" the point of shortest distance and so continuing
" for a distance of six feet on each side of such
" point" were omitted and such words shall be deemed to be omitted from the said subsection:

A.D. 1904.

(2) The following provision shall have effect in addition to and shall be read with the provisions contained in the said section :—

If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works of the Corporation is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of the Corporation's works or to the working of their undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated by the Corporation enter any of the Corporation's works for the purpose of inspecting the Corporation's plant and the working of the same and the Corporation shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Corporation pursuant to the Board of Trade regulations.

Extension of time for construction of tramways authorised in 1900.

14. The period limited by section 32 of the Christchurch Act of 1900 for the completion of the tramways authorised by that Act as extended by section 4 of the Christchurch and Bournemouth Tramways Act 1903 is hereby extended until the expiration of six years from the eleventh day of August nineteen hundred and three.

Alteration of tramways.

15.—(1) Notwithstanding anything contained in the Acts relating to the tramways of the Corporation the Corporation may—

(a) Make maintain alter and remove such cross-overs passing-places sidings junctions and other works in addition to those particularly specified in and authorised by the Acts relating to the tramways of the Corporation as they find necessary or convenient for the efficient working of those tramways for forming junctions with other tramways or light railways or for providing access to any warehouses stables or carriage-houses or works of the Corporation ; and

(b) Lay down double lines in lieu of single or interlacing lines or single lines in lieu of double or interlacing

lines or interlacing lines in lieu of double or single lines on any of their tramways either when constructing the tramways, or at any time thereafter and construct or take up and reconstruct any of their tramways in such position in the road in which it is authorised to be constructed as they may think fit:

A.D. 1904.

(2) Provided that if in the construction of any works under this section any rail is intended to be so laid that for a distance of thirty feet or upwards a less space than nine feet six inches would intervene between it and the outside of the footpath on either side of the road the Corporation shall not less than one month before commencing the works give notice in writing to every owner and occupier of houses shops and warehouses abutting on the place where such less space would intervene and such rail shall not be so laid (except with the consent of the Board of Trade) if the owners or occupiers of one-third of such houses shops or warehouses by writing under their hands addressed and delivered to the Corporation within three weeks after receiving the notice from the Corporation express their objection thereto.

16. The Corporation may with the consent of the owner of any building attach to that building such brackets wires and apparatus as may be required for the working of any of the tramways of the Corporation by mechanical power:

Attachment of brackets &c. to buildings.

Provided that—

(1) Where in the opinion of the Corporation any consent under this section is unreasonably withheld they may appeal to a petty sessional court who shall have power having regard to the character of the building and to the other circumstances of the case to allow the attachment subject to such terms as to compensation or rent and otherwise as they may think reasonable or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid:

(2) Any consent of an owner and any order of a petty sessional court under this section shall not have effect after that owner ceases to be in possession of the building but any attachments fixed under the provisions of this section shall not be removed

A.D. 1904.
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until the expiration of three months after any subsequent owner shall have given to the Corporation notice in writing requiring the attachments to be removed. Where such notice is given the preceding provisions of this section shall apply and the petty sessional court shall have the same powers as under proviso (1):

- (3) The owner may require the Corporation to temporarily remove the attachments where necessary during any reconstruction or repair of the building.

For the purpose of this section any occupier of a building whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rack rent shall be deemed to be the owner.

Waiting
rooms.

17. The Corporation may erect provide and fit up shelters or waiting-rooms for persons intending to use any of their tramways near to the routes of the tramways either upon land to be acquired for the purpose or (with the consent of the road authority) upon the highways.

Penalty for
malicious
damage.

18. If any person wilfully does or causes to be done with respect to any apparatus used for or in connection with the working of any of the tramways or the tramroad of the Corporation anything which is calculated to obstruct or interfere with the working of such tramways or tramroad or to cause injury to any person he shall (without prejudice to any proceedings by way of indictment or otherwise to which he may be subject) be guilty of an offence punishable on summary conviction and every person convicted of such offence or of any offence under section 50 of the Tramways Act 1870 with respect to any of the tramways or the tramroad of the Corporation shall be liable to a penalty not exceeding twenty pounds.

Regulations
as to street
traffic.

19.—(1) The Corporation may from time to time make regulations with respect to those streets in the borough to be specified in the regulations in which any of their tramways are constructed or which are specially liable to be obstructed by reason of the amount or nature of the traffic requiring the drivers of slow-moving vehicles to keep their vehicles to a particular portion of the street.

(2) All regulations under this section shall be subject to the approval of the Secretary of State.

(3) Any person who shall contravene any such regulation after warning given by word or signal by a police constable stationed in the street to direct the traffic shall be liable to a penalty not exceeding forty shillings. A.D. 1904.

20.—(1) The Corporation may provide maintain work and run omnibuses within the borough in connection with their tramways when the running of carriages thereon is impracticable or during the construction reconstruction alteration or repair thereof or in extension of any of their tramways and also for testing the amount of traffic along any route or between any particular points and the Corporation may demand take and recover tolls and fares for the use of such omnibuses. Corporation may run omnibuses.

(2) The Corporation may make byelaws for regulating the travelling and for the prevention of nuisances in or upon any omnibus belonging to them Provided that any such byelaws shall be made subject and according to the provisions of the Tramways Act 1870 with respect to the making of byelaws.

(3) All expenses and receipts incurred in or arising from the exercise of the powers of this section shall be deemed to be part of the expenses and receipts of the tramway undertaking of the Corporation.

(4) Section 18 (Corporation may provide omnibuses) of the Act of 1901 is hereby repealed.

LANDS.

21. Subject to the provisions of this Act the Corporation may enter on take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require for the purposes of this Act. Power to take lands.

22. The quantity of common land known as the Stint Pasture in the borough of Christchurch to be acquired under the powers of this Act shall not exceed five thousand eight hundred and nine square yards. Limiting quantity of land to be taken from common.

23. If there be any omission mis-statement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county of Southampton for the correction thereof and if it appear to the

A.D. 1904. justices that the omission mis-statement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of Southampton and a duplicate thereof shall also be deposited with the town clerk of the borough in which the lands affected thereby are situate and such certificate and duplicate respectively shall be kept by such clerk of the peace and town clerk respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Corporation to take the lands and execute the works in accordance with such certificate.

Period for compulsory purchase of lands.

24. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Owners may be required to sell parts only of certain lands and buildings.

25.—(1) Whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Corporation of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Corporation and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

(A) The owner of and persons interested in any of the properties whereof the whole or part is described or referred to in the Schedule to this Act and whereof a portion only is required for the purposes of the Corporation or each or any of them are herein-after included in the term "the owner" and the said properties are herein-after referred to as "the scheduled properties":

(B) If for twenty-one days after service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Corporation that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be

required to sell and convey to the Corporation such portion only without the Corporation being obliged or compellable to purchase the whole the Corporation paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise : A.D. 1904.

- (c) If within such twenty-one days the owner shall by notice in writing to the Corporation allege that such portion cannot be so severed the tribunal shall in addition to the other questions required to be determined by them determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Corporation have compulsory powers of purchase) can be so severed :
- (D) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Corporation the portion which the tribunal shall have determined to be so severable without the Corporation being obliged or compellable to purchase the whole the Corporation paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :
- (E) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in their absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner :
- (F) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material

A.D. 1904.

detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Corporation may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :

(G) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Corporation in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

(2) The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

(3) The provisions of this section shall be stated in or endorsed upon every notice given thereunder to sell and convey any premises.

Provisions
as to com-
pensation.

26. For the purpose of determining any question of disputed compensation payable in respect of lands taken for the purposes of the new street and street improvements authorised by this Act the following provisions shall apply and for the purposes of this section the expression "owner" shall mean the owner of and persons interested in the lands required by the Corporation :—

(1) The tribunal shall take into account any permanent increase in value of any lands retained by or belonging to the owner which in the opinion of the tribunal will result from or be caused by the construction of the works for or in connection with which the lands

are required and generally all the other circumstances of the case which it is equitable to consider : A.D. 1904.

- (2) The tribunal shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the land created after the first day of January nineteen hundred and four if in the opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

27. The following provisions shall apply with respect to any lands taken for the purposes of the new street and street improvements authorised by this Act namely :— Costs of arbitration &c. in certain cases.

- (1) The tribunal shall if so required by the Corporation award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Corporation by the claimant giving sufficient particulars and in sufficient time to enable the Corporation to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered one-half of the costs of the proceedings before the tribunal shall be defrayed by such claimant and the remaining half shall be defrayed by the Corporation anything in the Lands Clauses Consolidation Act 1845 to the contrary notwithstanding :

- (2) Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Corporation to amend the statement in writing of the claim delivered by him to the Corporation in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Corporation if they object to the amendment and such amendment shall be subject to such terms enabling the Corporation to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the

A.D. 1904.

claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case :

- (3) Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation Act 1845 either contains or is endorsed with a notice of the effect of this section.

Persons under disability may grant easements &c.

28. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to purchase additional lands by agreement.

29. The Corporation in addition to any other lands which they are by this Act authorised to acquire may by agreement purchase take on lease acquire and hold for the purposes of this Act any lands not exceeding in the whole five acres Provided that the Corporation shall not create or permit the creation or continuance of any nuisance on any lands acquired in pursuance of this section.

Power to retain sell &c. lands.

30. Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Corporation may retain hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interest therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

Proceeds of sale of surplus lands.

31. So long as any lands remain to be acquired by the Corporation under the authority of this Act they may so far

as they consider necessary apply any capital moneys received by them on resale or exchange or by leasing as aforesaid in the purchase of lands so remaining to be acquired but as to capital moneys so received and not so applied the Corporation shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this Act and such application shall be in addition to and not in substitution for any other mode of extinguishment by this Act provided except to such extent and upon such terms as may be approved by the Local Government Board Provided that—

A.D. 1904.

- (1) The amount to be applied in the purchase of lands under this section shall not exceed the amount for the time being unexhausted of the borrowing powers conferred by this Act for the purpose of such purchase :
- (2) The borrowing powers conferred by this Act for the purpose of such purchase shall be reduced to the extent of the amount applied in the purchase of lands under the provisions of this section.

PURCHASE OF TUCKTON BRIDGE UNDERTAKING.

32.—(1) The bridge company shall sell to the Corporation and the Corporation shall purchase the undertaking of the bridge company at the price of fifteen thousand pounds to be paid by the Corporation to the bridge company upon the completion of the purchase.

Sale of undertaking of bridge company to Corporation.

(2) The purchase shall be completed on the first day of October nineteen hundred and four at the offices of the bridge company's solicitors and if from any cause the purchase shall not be completed on that day the Corporation shall pay to the bridge company interest on the purchase money at the rate of four per centum per annum from that day until the actual completion of the purchase and upon payment of the purchase money and interest (if any) the undertaking of the bridge company with their rights powers and privileges shall by virtue of this Act become and shall thenceforth be transferred to and vested in the Corporation free from all mortgages charges debts and liabilities upon or affecting the same and such transfer and vesting are in this Act referred to as "the transfer."

(3) The production of a King's printer's copy of this Act duly stamped together with a receipt for the purchase money purporting to be signed by three directors of the bridge company

A.D. 1904. — or by the cashier of the Bank of England shall (unless it be proved that the purchase money has not been paid) be conclusive evidence in all courts and proceedings of the transfer to and vesting in the Corporation of the undertaking of the bridge company.

Receipt for
purchase
money.

33. The receipt in writing of three directors of the bridge company for any money paid to them by the Corporation shall effectually discharge the Corporation from the sum which in such receipt shall be acknowledged to have been received and from being bound to see to the application thereof and from being answerable or accountable for the loss mis-application or non-application thereof. Provided that if from any cause the Corporation are unable to obtain such receipt from the bridge company they may pay the money into the Bank of England in the name of the Paymaster-General for and on behalf of the Supreme Court to an account to be opened in the matter of this Act and a receipt shall be given to the Corporation by the cashier of the said bank for the money which shall have the same effect as the receipt of three directors of the bridge company.

Bridge com-
pany to pay
outgoings
and be
entitled to
receipts until
transfer.

34. The bridge company shall bear and pay all outgoings of every kind and shall be entitled to all receipts from their undertaking up to the thirtieth day of September nineteen hundred and four and as from that date the Corporation shall bear and pay all such outgoings and shall be entitled to all such receipts and so far as may be necessary such outgoings and receipts shall be apportioned and shall be deducted from or added to the purchase money (as the case may be) upon the completion of the purchase.

Maintenance
of under-
taking by
bridge com-
pany till
transfer.

35.—(1) Until the transfer the undertaking of the bridge company shall be maintained and carried on by the bridge company as heretofore in the ordinary course of business but as from the thirtieth day of September nineteen hundred and four until the transfer for the benefit and at the risk of the Corporation.

(2) As from the passing of this Act the bridge company shall not without the previous consent of the Corporation under the hand of the town clerk make or enter into any contract agreement or obligation except such as shall be in the ordinary course of the maintenance of the works and the proper conduct of the undertaking.

36. All mortgages charges debts and liabilities upon or affecting the undertaking or due from or payable by the bridge company which on the first day of October nineteen hundred and four shall remain undischarged unpaid or unsatisfied shall be discharged paid or satisfied by the bridge company and if at that date any action arbitration or proceeding or any cause of action arbitration or proceeding is pending or existing against or in favour of the bridge company the same shall not abate or be discontinued or in anywise prejudicially affected by reason of the transfer or of anything in this Act but the same may be continued prosecuted and enforced by against or in favour of the bridge company as and when it might have been continued prosecuted and enforced by against or in favour of them if this Act had not passed.

A.D. 1904.
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Liabilities to be defrayed by bridge company.

37. Subject to the provisions of this Act all agreements conveyances contracts deeds and other instruments entered into or made with or by the bridge company and in force at the time of the transfer shall be as binding and of as full force and effect in every respect against or in favour of the Corporation and may be enforced as fully and effectually as if instead of the bridge company the Corporation had been a party thereto.

Contracts with bridge company to be binding on Corporation.

38. All books and documents which if the transfer had not been made would have been evidence in respect of any matter for or against the bridge company shall be admitted in evidence in respect of the same or the like matter for or against the Corporation.

Books &c. to remain evidence.

39.—(1) From and after the date of the transfer the bridge company shall subsist only for the purpose of discharging paying and satisfying the mortgages charges debts and liabilities upon or affecting the undertaking or due from or payable by the bridge company and of receiving and recovering the sums payable to that company as provided by this Act and distributing the same and the purchase money and any other moneys payable to the bridge company in accordance with the provisions of this Act and for winding up the affairs of the bridge company and carrying into effect the purposes of this Act so far as they relate to the bridge company and the directors of the bridge company who are in office at the date of the transfer and the survivors or survivor of them shall continue without re-election to hold the office of directors of the bridge company and they

Winding up of bridge company.

A.D. 1904. — or a majority of them shall have full power and authority to take all necessary proceedings for carrying into effect the several purposes of this section.

(2) If the number of directors of the bridge company be reduced by death resignation or otherwise below three before the completion of such winding up the continuing directors shall from time to time choose a shareholder or shareholders of the bridge company to fill the vacancy or vacancies so caused.

(3) Forthwith after the date of the transfer the directors of the bridge company shall proceed to wind up the affairs of that company and after discharging paying and satisfying the mortgages charges debts and liabilities upon or affecting the undertaking or due from or payable by the bridge company shall pay and distribute their net moneys to and among the several persons who at the date of the transfer are the registered holders of stock or shares in the capital of the bridge company or their respective executors administrators and assigns according to the amount of the stock or shares held by them respectively and for the purpose of such distribution the several persons whose names shall appear in the books of the bridge company at the date of the transfer to be the proprietors of stock or shares therein shall unless the contrary be proved to the satisfaction of the directors be considered to be stockholders or shareholders of the bridge company and the receipt in writing of such persons or of their executors or administrators or of the committee or guardian of the estate of any such person who shall be an idiot lunatic or minor shall be an effectual discharge to the bridge company and the directors thereof for the money therein expressed to be received and shall exonerate them from any obligation affecting the stock shares or interest in respect whereof that money is paid.

(4) When the directors of the bridge company are for six months after the date of the transfer unable after diligent inquiry to ascertain the person to whom any money ought to be paid or who can give an effectual receipt for the same they may pay the same into the High Court or if not exceeding five hundred pounds into the county court of Hampshire holden at Christchurch and Bournemouth under any Act for the time being in force for the relief of trustees and every such payment shall effectually discharge the bridge company and the directors thereof from all further liability with respect to the money so paid in.

40. As from the date of the transfer the provisions of the Act of 1881 (other than the provisions of that Act which incorporate the Companies Clauses Consolidation Act 1845 and Parts I. and III. of the Companies Clauses Act 1863 or which relate to the incorporation capital or borrowing powers of the Bridge Company or the management of their affairs) shall extend and apply to the Corporation and shall be read and construed as if the Corporation were mentioned therein instead of the bridge company. Provided that subsection (c) of section 30 of the Act of 1881 shall be read and construed as if the words "any officer or soldier of Her Majesty's regular forces" included any officer seaman marine or other person belonging to or employed in His Majesty's naval service and subsection (d) of the same section shall be read and construed as if the expression "soldiers" included seamen and marines and the words "ordnance or commissariat or other public stores of or belonging to Her Majesty or to or for the use of Her Majesty's forces" contained in subsection (e) of the same section are hereby declared to include all stores belonging to or for the use of His Majesty's naval service. Provided also that the provisions of section 30 of the said Act of 1881 and section 143 of the Army Act 1881 shall apply to the tolls authorised to be taken by the section of this Act whereof the marginal note is "Tolls for persons crossing bridges in tramcars."

A.D. 1904.
Tuckton
Bridge Act
1881 to
apply to
Corporation.

41.—(1) In addition to the fares rates and charges which the Corporation are empowered to demand and take for passengers travelling upon their tramways the Corporation may demand and take a toll not exceeding one penny for every person travelling upon Tramway No. 3 authorised by this Act across the Tuckton Bridge and may demand and take a similar toll for every person travelling upon the tramroad by this Act authorised.

Tolls for persons crossing bridges in tramcars.

(2) The Corporation may collect the tolls which they are by this section authorised to demand and take together with the fares rates or charges authorised to be taken for travelling upon the tramways or tramroad of the Corporation and shall have the same powers in regard to the collection and recovery of such tolls as they have in regard to the collection and recovery of such fares rates and charges.

(3) All tolls taken in pursuance of this section in respect of the Tuckton Bridge shall form part of the revenue of that bridge.

A.D. 1904.

Agreements
with county
council and
Christchurch
Corporation
as to Tuck-
ton Bridge.

42. The Corporation the county council for the administrative county of Southampton the mayor aldermen and burgesses of the borough of Christchurch or any two of them may enter into and carry into effect agreements for or in relation to the purchase widening improvement maintenance and repair of the Tuckton Bridge or the reduction or abolition of the tolls taken in respect of that bridge and for the payment of the expenses thereof by the parties to the agreements or any of them in such proportions as may be determined by the agreements and all expenses incurred by such county council or such mayor aldermen and burgesses in pursuance of this section shall be defrayed as part of the expenses incurred in relation to the maintenance repair improvement or enlargement of bridges main roads or other highways by such bodies and any powers of borrowing applicable to the raising of any fund for the payment of any such expenses as aforesaid shall be applicable accordingly.

FINANCE.

Power to
borrow.

43.—(1) The Corporation may independently of any other borrowing power borrow at interest money for the following purposes (that is to say):—

- (A) For the construction of the tramways authorised by this Act (including the strengthening and improvement of the Tuckton Bridge) together with all necessary posts standards brackets conductors and conveniences for the purposes of such tramways and for the purchase of rolling stock the sum of thirty-nine thousand pounds;
- (B) For the purchase of land for and for the construction of the tramroad authorised by this Act including the bridge over the River Stour the sum of twelve thousand pounds;
- (C) For the purchase of land for and for the execution of the street improvements authorised by this Act the sum of ten thousand pounds;
- (D) For the purchase of the undertaking of the bridge company and for defraying the costs and expenses incident to such purchase and to the transfer of such undertaking to the Corporation (other than the costs of this Act) and any other sum payable by the Corporation to the bridge company under the provisions

of this Act (except sums payable for interest) the A.D. 1904.
sum of fifteen thousand five hundred pounds;

- (E) For paying the costs charges and expenses of this Act as herein-after provided the sum requisite for that purpose;

and with the consent of the Board of Trade such further money as may be necessary for any of the foregoing purposes (A) and (B) or for any of the purposes of the tramway undertaking of the Corporation and with the consent of the Local Government Board such further money as may be necessary for any of the other purposes of this Act.

(2) In order to secure the repayment of the money borrowed under this section and the payment of the interest thereon the Corporation may mortgage or charge—

As regards money borrowed for the purposes (A) and (B) and any money borrowed for the purposes of the tramway undertaking of the Corporation the revenue of that undertaking and the borough fund and borough rate or either of those securities;

As regards money borrowed for the purposes (D) and any money borrowed for or in connection with the Tuckton Bridge (except for the purposes (A) herein-before mentioned) the revenue of that bridge and the borough fund and borough rate or either of those securities;

As regards money borrowed for the purposes of the section of this Act whereof the marginal note is “Further powers as to Meyrick Park King’s Park and Queen’s Park” the fund and rate applicable to the payment of the expenses of maintaining the respective parks or commons in respect of which the money is borrowed;

As regards money borrowed for any other purpose the district fund and general district rate.

(3) The Corporation shall pay off all money borrowed by them under this section within the respective periods following (that is to say):—

As to money borrowed for the purposes (A) within thirty years from the date or dates of borrowing the same;

As to money borrowed for the purposes (B) within fifty years from the date or dates of borrowing the same;

As to money borrowed for the purposes (C) within sixty years from the date or dates of borrowing the same;

A.D. 1904.

As to money borrowed for the purposes (D) within forty years from the date or dates of borrowing the same;
As to money borrowed for the purpose (E) within five years from the passing of this Act;
As to money borrowed with the consent of the Board of Trade or the Local Government Board within such period as the respective Boards may sanction.

Mode of raising money.

44. The Corporation may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others Provided that the provisions of the Bournemouth Corporation Act 1897 relating to sinking funds shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of section 15 of that Act.

Application of certain sections of Bournemouth Corporation Act 1897.

45. The following sections of the Bournemouth Corporation Act 1897 shall extend and apply mutatis mutandis to the powers conferred upon the Corporation by this Act:—

- Section 12 (Power to Local Government Board to direct inquiries);
- Section 13 (Payment of expenses of Local Government Board);
- Section 15 (Certain sections of Public Health Act as to mortgages to apply);
- Section 17 (Payment off of money borrowed);
- Section 18 (Provisions as to sinking fund) except subsection (2);
- Section 19 (Application of sinking fund);
- Section 20 (Power to re-borrow);
- Section 21 (Protection of lender from inquiry);
- Section 22 (Corporation not to regard trusts);
- Section 23 (Annual return to Local Government Board with respect to sinking fund);
- Section 24 (Application of money borrowed).

Application of revenue of Tuckton Bridge and deficiency of receipts.

46.—(1) The Corporation shall apply all money received by them on account of revenue in respect of the Tuckton Bridge undertaking in manner and in the order following (that is to say):—

First In payment of the working and establishment expenses and cost of maintenance of the undertaking;

Secondly In payment of the interest on moneys borrowed by the Corporation for the purposes of the undertaking; A.D. 1904.

Thirdly In providing the requisite appropriations instalments or sinking fund payments in respect of moneys borrowed by the Corporation for the purposes of the undertaking;

Fourthly In extending and improving the bridge (if the Corporation think fit);

Fifthly In providing a reserve fund (if the Corporation think fit) by setting aside such money as they think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Corporation not exceeding a sum equal to one-fifth of the aggregate capital expenditure for the time being by the Corporation upon the undertaking which fund shall be applicable to answer any deficiency at any time happening in the income of the Corporation from the undertaking or to meet any extraordinary claim or demand at any time arising against the Corporation in respect of the undertaking or for payment of the cost of renewing any part of the undertaking or for extending and improving any works for the purposes of the undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum:

And the Corporation shall carry to the borough fund so much of any balance remaining in any year of the income of the undertaking (including the interest on the reserve fund when such fund amounts to the prescribed maximum) as may in the opinion of the Corporation not be required for carrying on the undertaking and paying the current expenses connected therewith.

(2) Any deficiency in the revenue of the said undertaking shall be made good out of the borough rate made next after the deficiency is ascertained.

A.D. 1904. (3) In this section the expression "statutory securities" means securities in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and mortgages bonds debentures debenture-stock stock or other securities authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation in Great Britain or of any other local authority as defined by section 34 of the Local Loans Act 1875 other than securities of the Corporation or annuity certificates rentcharges or securities payable to bearer.

Expenses of execution of Act. **47.** Any expenses of the execution by the Corporation of this Act with respect to which no other provision is made may be defrayed by the Corporation out of the borough fund or district fund as the Corporation having regard to the object of the expenditure shall deem just.

MISCELLANEOUS.

Saving rights of Crown. **48.** Nothing herein contained shall authorise the Corporation to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to the King's most Excellent Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent such Commissioners and such Board are hereby respectively authorised to give) neither shall anything herein contained extend to take away prejudice diminish or alter any of the estates rights privileges powers or authorities vested in or enjoyed or exerciseable by the King's Majesty.

Further powers as to Meyrick Park King's Park and Queen's Park. **49.—(1)** Notwithstanding anything contained in the Bournemouth Park Lands Act 1889 or in the Bournemouth Corporation Act 1900 the Corporation may—

(A) Erect in the parks as defined in the Bournemouth Park Lands Act 1889 (now known as "Meyrick Park") and in the commons as defined in the Bournemouth Corporation Act 1900 (now known respectively as "King's Park" and "Queen's Park") and maintain furnish and equip or remove pavilions refreshment

rooms or other buildings and conveniences which may be required or convenient for the purposes of the public resorting to the said parks and commons and may charge for admission to such pavilions refreshment rooms buildings and conveniences or any of them or in respect of the use thereof; A.D. 1904.

(B) Let any such pavilions refreshment rooms buildings or conveniences with the appurtenances to such person for such term not exceeding three years at any one time at such rent payable at such times under such covenants and on such conditions and with under and subject to such rights powers privileges and authorities relating thereto respectively as the Corporation may think fit;

(c) Sell dispose of or exchange small portions of the said parks and commons or purchase lands adjoining the same for the purpose of improving the boundaries of such parks and commons.

(2) Any pavilions refreshment rooms buildings or conveniences erected by the Corporation in the said parks or commons before the passing of this Act shall be deemed to have been erected under the powers of this section.

(3) Any expenses incurred by the Corporation in pursuance of this section (other than expenses defrayed out of borrowed money) shall be paid out of and any sums received by them in pursuance thereof shall be paid into the fund or rate applicable to the payment of the expenses of maintaining the respective parks or commons in respect of which such expenses are incurred or sums are received.

50. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation and may be paid in the first instance out of any moneys in their hands but shall be charged to and recouped by the moneys borrowed under the provisions of this Act. Costs of Act.

A.D. 1904.

The SCHEDULE referred to in the foregoing Act.

PREMISES OF WHICH PARTS ONLY ARE REQUIRED.

Borough.		Numbers on Deposited Plans.
Borough of Bournemouth	-	1 2 3 6 21 23 24 25 26 27 28 and 29.
Borough of Christchurch	-	1 2 4 5 and 6.

Printed by EYRE and SPOTTISWOODE,

FOR

T. DIGBY PIGOTT, Esq., C.B., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
EYRE AND SPOTTISWOODE, EAST HARDING STREET, FLEET STREET, E.C.; or
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